

24TRCV03768 24TRCV03768

County: los-angeles

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Case Number: 24TRCV03768 Hearing Date: June 24, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

DONALD JAMES VARGO

, et al.;

Plaintiffs,

vs.

VOLKSWAGEN GROUP OF

AMERICA, INC.

, et al.;

Defendants.

Case

No.:

24TRCV03768

Hearing

Date:

June

24, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION TO COMPEL DEPOSITION OF PLAINTIFF DONALD

JAMES VARGO

(2)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION TO COMPEL DEPOSITION OF PLAINTIFF

ALEJANDRA VARGO

(3)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S REQUEST FOR MONETARY sANCTIONS

MOVING PARTY: Defendant,

Volkswagen Group of America, Inc.

RESPONDING

PARTY: No

opposition.

(1)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Deposition of Plaintiff Donald

James Vargo is GRANTED IN PART pursuant to Code of Civil Procedure section

2025.450, subdivision (a).

(2)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Deposition of Plaintiff Alejandra

Vargo is GRANTED IN PART pursuant to Code of Civil Procedure section 2025.450,

subdivision (a).

(3)

Defendant

Volkswagen Group of America, Inc.'s Request for Monetary Sanctions is GRANTED

in the reduced amount of \$1,245.00 pursuant to Code of Civil Procedure section 2025.450,

subdivision (g)(1).

The Court considers the moving papers filed on

May 1, 2026. To date, no opposition

brief has been filed.

BACKGROUND

Factual Background

On November 6, 2024, plaintiffs Donald James Vargo and Alejandra Vargo

(collectively, "Plaintiffs") filed the Complaint against defendants Volkswagen

Group of America, Inc. ("Volkswagen"), PVW South Bay, LLC, dba Pacific Volkswagen, and DOES 1 through 10. The Complaint includes the following causes

of action: (1) Violation of the Song-Beverly Consumer Warranty Act – Breach of

Express Warranties; (2) Breach of Implied Warranty (Song Beverly); (3)

Violation of Business and Professions Code section 17200; and (4) Negligent

Repair.

On February 24, March 25, and March 31, 2026, Volkswagen's counsel

emailed Plaintiffs' counsel to request their availability for depositions. (Declaration of Chiamaka S. Enemuoh ("Enemuoh

Decl."), ¶ 3, Exh. A.) Plaintiffs' counsel

did not respond to these inquiries. (Enemuoh

Decl., ¶ 3, Exh. A.)

Subsequently, on April 1, 2026, Volkswagen formally served Plaintiffs

with deposition notices, scheduling the depositions of Donald and Alejandra for

April 21, 2026, at 10:00 a.m. and 2:00 p.m., respectively. (Enemuoh Decl., ¶ 4, Exh. B.) The notices also included requests for

several documents, items, and videos pertinent to the case. (Enemuoh Decl., ¶ 4, Exh. B.) On April 9, 2026, Plaintiffs' counsel

confirmed their participation in the scheduled depositions. (Enemuoh Decl., ¶ 5, Exh. C.)

However, on April 20, 2026, Plaintiffs' counsel sent an email to

Volkswagen's counsel indicating that, "Due to an unforeseen conflict, we are

going to need to reschedule tomorrow's deposition." (Enemuoh Decl., ¶ 5, Exh. C.) They further requested "a couple dates that

work in the next few weeks." (Enemuoh

Decl., ¶ 6, Exh. C.)

In response, Volkswagen's counsel indicated they would proceed to take certificates

of nonappearance given that the trial was set for August 2026. (Enemuoh Decl., ¶ 6, Exh. C.) They proposed May 14, 2026, as a potential

reschedule date for the depositions. (Enemuoh

Decl., ¶ 6, Exh. C.)

Notwithstanding this, Volkswagen's counsel provided Plaintiffs' counsel

with the electronic deposition credentials should Plaintiffs choose to appear. (Enemuoh Decl., ¶ 7, Exh. D.) In reply, Plaintiffs' counsel stated: "I sent

you an email 5 hours ago saying we need to reschedule this and to provide new

dates within the next 3 weeks." (Enemuoh

Decl., Exh. D.)

On April 21, 2026, Plaintiffs failed to appear for the depositions, and

Volkswagen took certificates of nonappearance.

(Enemuoh Decl., ¶ 8, Exh. E.) As

of the date of filing, Plaintiffs have not proposed any alternative dates for

the depositions. (Enemuoh Decl., ¶ 9.)

LEGAL STANDARD

Code of Civil Procedure section 2025.450, subdivision (a) provides:

“If, after service of a deposition notice, a party to the action or an officer,

director, managing agent, or employee of a party, or a person designated by an

organization that is a party under Section 2025.230, without having served a

valid objection under Section 2025.410, fails to appear for examination, or to

proceed with it, or to produce for inspection any document, electronically

stored information, or tangible thing described in the deposition notice, the

party giving the notice may move for an order compelling the deponent’s

attendance and testimony, and the production for inspection of any document,

electronically stored information, or tangible thing described in the

deposition notice.” (Code Civ. Proc., §

2025.450, subd. (a).)

The motion must “be accompanied by a meet and confer declaration under

Section 2016.040, or, when the deponent fails to attend the deposition and

produce the documents, electronically stored information, or things described

in the deposition notice, by a declaration stating that the petitioner has

contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

"If a motion under subdivision (a) is granted, the court shall impose

a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor

of the party who noticed the deposition and against the deponent or the party

with whom the deponent is affiliated, unless the court finds that the one

subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), "The court may impose a monetary sanction

ordering that one engaging in the misuse of the discovery process, or any

attorney advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one

unsuccessfully asserting that another has engaged in the misuse of the

discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any

provision of this title, the court shall impose that sanction unless it finds

that the one subject to the sanction acted with substantial justification or

that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd.

(a).) "Misuses of the discovery process

include ... (h) Making or opposing, unsuccessfully and without substantial

justification, a motion to compel or to limit discovery. ¶ (i)

Failing to confer or to attempt to confer, in person, by telephone, or by

videoconference with an opposing party or attorney in a reasonable and good

faith attempt to resolve informally any dispute concerning discovery, if the

section governing a particular discovery motion requires the filing of a

declaration stating facts showing that an attempt at informal resolution has

been made..” (Code Civ. Proc., §

2023.010, subds. (h)-(i).)

“The court may award sanctions under the Discovery Act in favor of a

party who files a motion to compel discovery, even though no opposition to the

motion was filed, or opposition to the motion was withdrawn, or the requested

discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Volkswagen must

meet and confer with Plaintiffs before bringing these motions, either by

contacting the deponents to inquire about the nonappearance or by following

Code of Civil Procedure section 2016.040.

(Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040

states that a meet and confer declaration “in support of a motion [to compel]

shall state facts showing a reasonable and good faith attempt at an informal

resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) ““The parties must present to each other the

merits of their respective positions with the same candor, specificity and

support during informal negotiations as during the briefing of discovery

motions. Only after all the cards have

been laid on the table, and a party has meaningfully assessed the relative

strengths and weaknesses of its position in light of all available information,

can there be a ‘sincere’ effort to resolve the matter.” (In re Marriage of Moore (2024) 102

Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998)

61 Cal.App.4th 1431, 1435.)

The Court finds that Volkswagen sufficiently

attempted to meet and confer regarding the deposition dates.

On February 24, March 25, and

March 31, 2026, Volkswagen's counsel emailed Plaintiffs' counsel to request

their availability for depositions. (Enemuoh

Decl., ¶ 3, Exh. A.) Plaintiffs' counsel

did not respond to these inquiries. (Enemuoh

Decl., ¶ 3, Exh. A.)

Subsequently, on April 1,

2026, Volkswagen formally served Plaintiffs with deposition notices, scheduling

the depositions of Donald and Alejandra for April 21, 2026, at 10:00 a.m. and

2:00 p.m., respectively. (Enemuoh Decl.,

¶ 4, Exh. B.) The notices also included

requests for several documents, items, and videos pertinent to the case. (Enemuoh Decl., ¶ 4, Exh. B.) On April 9, 2026, Plaintiffs' counsel

confirmed their participation in the scheduled depositions. (Enemuoh Decl., ¶ 5, Exh. C.)

However, on April 20, 2026,

Plaintiffs' counsel sent an email to Volkswagen's counsel indicating that, "Due

to an unforeseen conflict, we are going to need to reschedule tomorrow's

deposition." (Enemuoh Decl., ¶ 5, Exh.

C.) They further requested "a couple

dates that work in the next few weeks."

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In response, Volkswagen's

counsel indicated they would proceed to take certificates of nonappearance

given that the trial was set for August 2026.

(Enemuoh Decl., ¶ 6, Exh. C.) They

proposed May 14, 2026, as a potential reschedule date for the depositions. (Enemuoh Decl., ¶ 6, Exh. C.)

Notwithstanding this,

Volkswagen's counsel provided Plaintiffs' counsel with the electronic

deposition credentials should Plaintiffs choose to appear. (Enemuoh Decl., ¶ 7, Exh. D.) In reply, Plaintiffs' counsel stated: "I sent

you an email 5 hours ago saying we need to reschedule this and to provide new

dates within the next 3 weeks.” (Enemuoh

Decl., Exh. D.)

On April 21, 2026, Plaintiffs

failed to appear for the depositions, and Volkswagen took certificates of

nonappearance. (Enemuoh Decl., ¶ 8, Exh.

E.) As of the date of filing, Plaintiffs

have not proposed any alternative dates for the depositions. (Enemuoh Decl., ¶ 9.)

Consequently,

the Court concludes that Volkswagen has adequately attempted to meet and confer

regarding the deposition dates. However,

because Volkswagen did not address the requests for production of documents in

the meet-and-confer emails, the Court finds that Volkswagen did not

sufficiently meet and confer on those requests.

As a result, the Court will refrain from addressing this issue on its

merits and will not compel Plaintiffs to produce the requested documents,

items, and videos.

DISCUSSION

Omnibus Motion

Volkswagen requests orders to compel the depositions of two

plaintiffs, Donald James Vargo and Alejandra Vargo. (Motion, p. 2:7-12.) Volkswagen

has erroneously combined two distinct motions into a single consolidated filing.

Multiple motions should not be combined into

a single filing. (See Gov. Code, § 70617,

subd. (a)(4) [setting forth the required filing fee for each motion,

application, or any other paper or request requiring a hearing].) Combining multiple motions under the guise of

one motion with one hearing reservation manipulates the Court Reservation

System and unfairly jumps ahead of other litigants. Moreover, combining motions to avoid payment

of separate filing fees deprives the Court of the filing fees it is otherwise

entitled to collect. Filing fees are

jurisdictional, and it is mandatory for court clerks to demand and receive

them. (See *Duran v. St. Luke's*

Hospital (2003) 114 Cal.App.4th 457, 460.)

The Court informs Volkswagen that all future

motions must be filed individually, pursuant to Government Code section 70617. Any omnibus filings submitted in the future

shall be denied without prejudice. Furthermore,

the following orders are contingent upon Volkswagen paying one additional

filing fee within ten (10) days of the date of this order.

Motions to Compel

Volkswagen

requests that the Court issue an order compelling Plaintiffs to attend their

depositions within a period of ten (10) days.

(Motion, p. 2:7-12.) Plaintiffs have not proposed any alternative

dates for these depositions. (Enemuoh

Decl., ¶ 9.) The information obtained

during the depositions will enable Volkswagen and its “expert witness to

prepare for trial, which is presently scheduled for August 26, 2026.” (Motion, p. 5:22-23.)

In

particular, Volkswagen asserts that the depositions will allow it “to, inter

alia, (1) obtain facts underlying the basis of Plaintiffs’ claims against [Volkswagen] and information regarding Plaintiffs’

specific circumstances; (2) obtain Plaintiffs’ descriptions of the defects they

allege to have experienced in the Subject Vehicle and the circumstances under

which they occurred to determine if there was, in fact, a substantial

impairment to use, value, or safety; (3) assess whether [Volkswagen] has

grounds to file a dispositive motion; and (4) permit [Volkswagen’s] expert to

formulate an opinion regarding whether the Subject Vehicle had a warranted

nonconformity that substantially impaired the vehicle’s use, value, or safety.” (Motion, p. 7:7-14.) Furthermore, the depositions will be

instrumental in preparing for a legal vehicle inspection, “as Plaintiffs are

the only people who can provide information about the circumstances under which

the alleged problems Plaintiffs experienced with the vehicle occurred.” (Motion, p. 7:20-22.)

In light of

these considerations, the Court GRANTS IN PART Volkswagen's motions to compel

depositions. Plaintiffs shall appear for

their depositions by July 6, 2026.

However, the Court will not compel Plaintiffs to produce the requested

documents.

Request For

Monetary Sanctions

Volkswagen requests \$2,430.00 in sanctions to cover attorney's fees

and costs incurred in the filing of this omnibus motion. (Motion, pp. 8:21-9:24.) This request is made pursuant to Code of Civil

Procedure sections 2023.010, subdivisions (h) and (i), 2023.030, subdivision

(a), and 2025.450, subdivision (g)(1). (Motion,

pp. 8:22-9:8.)

The request is

supported by a declaration from Volkswagen's counsel, Chiamaka S. Enemuoh. In this declaration, Enemuoh indicates that

their hourly rate is \$395.00 and that they devoted 3.0 hours to drafting the

motion. (Enemuoh Decl., ¶ 11.) Enemuoh anticipates dedicating another 3.0

hours to review the opposition, prepare a reply, and attend the hearing. (Enemuoh Decl., ¶ 11.) Additionally, Volkswagen incurred \$60.00 in

filing fees. (Enemuoh Decl., ¶ 11.)

Under Code of Civil Procedure

section 2025.450, subdivision (g)(1), "If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Considering that the Court is granting these motions and does not find the imposition of sanctions to be unjust, the Court GRANTS Volkswagen's request for sanctions against Plaintiffs and their counsel, jointly and severally. However, the Court reduces the imposed sanctions to \$1,245.00. This reduction is based on the straightforward nature of the motions, the fact that Plaintiffs did not file an opposition, and the expectation that the hearing on the motions should not exceed one hour.

ORDERS

1) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Deposition of Plaintiff

Donald James Vargo is GRANTED IN PART.

2) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Deposition of Plaintiff

Alejandra Vargo is GRANTED IN PART.

3) Plaintiffs

Donald James Vargo and Alejandra Vargo shall appear for their depositions on or

before July 6, 2026. However, the Court

will not compel Plaintiffs to produce the requested documents, items, and videos.

4) Defendant

Volkswagen Group of America, Inc.'s Request for Monetary Sanctions is GRANTED

in the reduced amount of \$1,245.00.

5) Plaintiffs

Donald James Vargo and Alejandra Vargo and shall pay Volkswagen's counsel \$1,245.00

on or by July 6, 2026.

6) These

orders are contingent upon Volkswagen paying one additional filing fee within

ten (10) days of the date of this order.

7) The

Court orders Volkswagen to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: June 24, 2026

Tamara

Hall

Judge

of the Superior Court